

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201502498	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 04/02/2015 5:00 PM	Location of Incident: Fordham Road subway station; Transit District 11 stationhouse	18 Mo. SOL 10/2/2016	Precinct: 52		
Date/Time CV Reported Fri, 04/03/2015 8:36 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/03/2015 8:36 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Thompson	08687	948542	TB BQTF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jose Gautreaux	02357	938542	TB BQTF

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Thompson	Discourtesy: Inside the Fordham Road subway station in the Bronx and at the Transit District 11 stationhouse, PO Anthony Thompson spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Anthony Thompson	Abuse: En route to the Transit District 11 stationhouse, PO Anthony Thompson refused to provide his name to § 87(2)(b)	B . Unsubstantiated

Case Summary

On April 2, 2015, at approximately 5:00 p.m. § 87(2)(b) entered the Fordham Road 4 subway station in the Bronx. § 87(2)(b) stood outside the subway turnstiles for two to four minutes. § 87(2)(b) was eventually swiped through the turnstiles by a friend that he identified as § 87(2)(b). As § 87(2)(b) was going up the stairs to the subway platform, he was stopped by PO Thompson. PO Thompson told § 87(2)(b) he was being stopped for panhandling. PO Thompson asked him to sit on a bench and provide his ID. An interaction ensued in which PO Thompson allegedly cursed at § 87(2)(b) several times (**Allegation A**). A warrant check was conducted on § 87(2)(b) and it was discovered that he had an open warrant. § 87(2)(b) was placed under arrest. § 87(2)(b) was transported to the Transit District 11 stationhouse in a police van. In the van, § 87(2)(b) asked PO Thompson for his name. PO Thompson allegedly said “Just call us officers” and did not provide § 87(2)(b) with his name (**Allegation B**). At the stationhouse, § 87(2)(b) was presented with a warrant document that had his photo on it. PO Thompson presented this document to § 87(2)(b) and allegedly said, “This is you, stupid dumbass. You have a warrant. Now you going through the fucking system to see a judge, asshole. (**Allegation A**). § 87(2)(b) was held in a holding cell for two to three hours. § 87(2)(b) was released without a summons or any criminal charges against him.

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation because § 87(2)(b) was filing a lawsuit. On June 10, 2015 a notice of claim request was filed and will be added to the case file upon receipt. § 87(2)(b) [§ 87(4)(2)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is § 87(2)(b)'s 10th complaint at the CCRB, and his fifth that fell within the CCRB's jurisdiction (Board Review 02).
- PO Thompson has been a member of the service for five years and this is his first CCRB complaint (Board Review 03).

Findings and Recommendations

Explanation of Subject Officer Identification

During his CCRB testimony, § 87(2)(b) described the subject officer as a Hispanic male, possibly Dominican, standing 5'9" tall, weighing 200 pounds, in his 30s, and wearing plainclothes (Board Review 04). § 87(2)(b) noted that the subject officer was his arresting officer. The allegations made by § 87(2)(b) were against a single subject officer. On his CCRB interview report, PO Thompson described himself as a § 87(2)(b) black male, standing 5'10" tall, and weighing 245 pounds. PO Thompson appears on § 87(2)(b)'s arrest report as the arresting officer for this incident (Board Review 08). PO Thompson's and SGT Gautreaux's testimony both describe PO Thompson as the officer who primarily interacted with § 87(2)(b) during this incident (Board Review 05, Board Review 06). § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A- Discourtesy: PO Anthony Thompson spoke rudely to § 87(2)(b)

§ 87(2)(b) stated during his in-person interview that after he passed through the subway faregate he was stopped by PO Thompson (Board Review 04). § 87(2)(b) asked why he was being stopped. PO Thompson responded “Give me your fucking ID. Shut the fuck up and give me your ID.” § 87(2)(b) was led to a bench and asked to sit down. PO Thompson allegedly said, “Give me your fucking ID and sit down.” A warrant check was conducted on § 87(2)(b) and the results returned that he had an open warrant. § 87(2)(b) disputed that he had an open warrant. PO Thompson replied, “If you keep running your fucking stupid mouth I’m going to take you through the system.”

At the Transit District 11 stationhouse, § 87(2)(b) alleged that PO Thompson presented him with a warrant document. The document contained a photo of § 87(2)(b). PO Thompson allegedly said, “This is you, stupid dumbass; you have a warrant. Now you going through the fucking system to see a judge, asshole.”

Video footage from the incident location was acquired from the MTA. The available footage did not capture the incident at the subway station.

Contact attempts were made to § 87(2)(b) who § 87(2)(b) alleged swiped him through the turnstiles. § 87(2)(b) could not be reached to provide independent witness testimony for this investigation. § 87(2)(b) was unable to provide a full name or contact information for § 87(2)(b) during his in-person interview. § 87(2)(b) later provided a phone number for § 87(2)(b) which was a wrong number.

Patrol Guide procedure 203-09 states that an officer must “Be courteous and respectful” while engaging in public contact.

During his CCRB testimony, PO Thompson stated that § 87(2)(b) was compliant with all of his requests (Board Review 05). The conversation with § 87(2)(b) never became heated. PO Thompson denied making any of the specific statements that § 87(2)(b) alleged. PO Thompson stated that he never cursed at § 87(2)(b) during this incident.

During his CCRB testimony, SGT Gautreaux stated that § 87(2)(b) was compliant with all of PO Thompson’s requests (Board Review 06). SGT Gautreaux stated that § 87(2)(b) did not argue with any officer during this incident. SGT Gautreaux did not hear any of the specific statements that § 87(2)(b) alleged were made by PO Thompson. SGT Gautreaux stated that he did not hear any officer curse at § 87(2)(b) during this incident. SGT Gautreaux was not present at the Transit District 11 stationhouse at the time § 87(2)(b) was presented a warrant document, which was when § 87(2)(b) alleged that discourteous conduct occurred.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B- Abuse of Authority: PO Anthony Thompson refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) stated that after he was arrested at the Fordham Road subway station he was taken to an unmarked police van (Board Review 04). § 87(2)(b) was transported to the Transit District 11 stationhouse. § 87(2)(b) was seated in the back row of the van. PO Thompson was

sitting directly in front of § 87(2)(b) § 87(2)(b) alleged that he asked PO Thompson for his name. PO Thompson allegedly replied, “Just call us officers,” and refused to provide his name. § 87(2)(b) then told the officers that he was going to file a lawsuit.

A civilian witness, § 87(2)(b) had also been arrested at the subway station and was in the van as well. § 87(2)(b) could not be reached to provide independent witness testimony for this investigation. Contact information could not be obtained from § 87(2)(b) arrest report because the record is sealed. A Lexis search was conducted which yielded two phone numbers and two addresses for § 87(2)(b). One phone number was disconnected and the other was a wrong number. A letter sent to an address in the Bronx was returned by the USPS as “Not Known Unable To Forward” and no response was received from a letter sent to an address in Florida.

Patrol Guide procedure 203-09 states that an officer must “courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information.”

During his testimony at the CCRB, PO Thompson confirmed that § 87(2)(b) was seated in the back row of the van and that he was seated in front of him (Board Review 05). PO Thompson acknowledged that § 87(2)(b) spoke with him in the van. § 87(2)(b) said, “I’m not mad at you; I’m happy. Another \$100,000 for me.” PO Thompson also noted this part of the conversation in his memo book (Board Review 07). PO Thompson did not reply to § 87(2)(b). PO Thompson testified that he did not hear § 87(2)(b) ask him for his name or shield number in the van. PO Thompson did not tell § 87(2)(b) to “Just call us officers.” PO Thompson stated that at no point during this incident did § 87(2)(b) ask him to identify himself.

SGT Gautreaux testified that he was seated in the front passenger seat in the van (Board Review 06). SGT Gautreaux stated that he heard people talking in the van but was not paying attention to the conversation. SGT Gautreaux could not tell who was speaking. SGT Gautreaux did not hear § 87(2)(b) ask PO Thompson for his name or shield number in the van. SGT Gautreaux did not hear § 87(2)(b) ask any officer for their name or shield number in the van. SGT Gautreaux did not hear PO Thompson or any other officer say “Just call us officers.” SGT Gautreaux did not hear § 87(2)(b) ask any officer for their name or shield number at any point during this incident.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is
recommended that **Allegation B** be closed as **unsubstantiated**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date